

The Orissa Identification of Prisoners Rules, 1950

Source: <https://indiankanoon.org/doc/50641103/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

State of Odisha - Act

The Orissa Identification of Prisoners Rules, 1950

ODISHA

India

The Orissa Identification of Prisoners Rules, 1950

Rule THE-ORISSA-IDENTIFICATION-OF-PRISONERS-RULES-1950 of 1950

Published on 21 December 1950

Commenced on 21 December 1950

[This is the version of this document from 21 December 1950.]

[Note: The original publication document is not available and this content could not be verified.]

The Orissa Identification of Prisoners Rules, 1950

Published vide Notification No. 20957-JIs, dated 21st December, 1950, Orissa Gazette Extraordinary Part 3/19.1.1951

Notification No. 20957-JIs, dated 21st December, 1950. - In exercise of the powers conferred by Section 8 of the Identification of Prisoners Act, 1920 (XXXIII of 1920), the Governor of Orissa is pleased to make the following rules for the purpose of carrying into effect the provisions of the said Act, namely :

1.

Short title.

(1)

These rules may be called the Orissa Identification of Prisoners Rules, 1950.

(2)

They shall come into force at once.

2.

Definitions.

- In these rules unless there is anything repugnant in the subject or context-

(a)

"Act" means the Identification of Prisoners Act, 1920;

(b)

words and expressions used in these rules shall have the same meaning as assigned to them in the Act.

3.

Taking of photographs or measurements.

(a)

Every person if so required shall allow his photograph or measurements to be taken under Section 3 or 4 under the direction of a Police Officer.

(b)

Photographs of persons required under Section 3 shall only be taken by order of an officer not being below the rank of Superintendent of Police or of a Gazetted Officer-in-charge during his absence.

Note. - "Police Officer" means an Officer-in-charge of a police station, a Police Officer making an investigation under Chapter XIV of the Code of Criminal Procedure, 1898, or any other Police Officer not being below the rank of a Sub-Inspector.

4.

Places at which measurements and photographs may be taken.

(1)

Measurements and photographs may be taken-

(a)

in jails when the person whose photograph or measurement is to be taken is in the jail;

(b)

at a police-station or at any other place at which the Police Officer may direct the taking of photograph or measurements if the person whose photograph or measurement is to be taken is in police custody;

(c)

at Magistrate's Court when the person is in Magistrate's custody;

(2)

If the person whose photograph or measurements are to be taken has been released from jail before his measurements or photograph has been taken or is not in police custody, he shall on receipt of an order in writing from the Officer-in-charge of a police-station, attend at such place and time as may be specified in the order and shall allow his measurements or photograph to be taken.

(3)

In no case shall the photograph and measurements be taken in view of the public.

5.

The nature of measurements that may be taken.

- Measurements shall be taken in the following manner :

(i)

Finger impressions - Finger impressions shall be taken by applying printer's ink to the palmer surface of the fingers and thumbs above the first joint and then applying the surfaces so inked to a paper form, prepared so as to show the impression of each finger or thumb in the space provided for it ;

(ii)

Foot-print Impressions - Shall ordinarily be taken by applying printer's ink to the sole of the foot and then applying the inked surface to a sheet of paper and/or by tracing the outline of the foot, with or without shoes or boots, on a sheet of paper or glass. Foot-print impressions may also be taken, on soft earth for the purpose of making a plaster of paris mould of the impression ;

(iii)

Height - Measurement of height shall be obtained by making the person to be measured stand erect, bare-footed and bare-headed, and recording his actual height. Measurement of the whole or any part of the body may be taken.

6.

(a)

The photographs may be taken full face and profile, head, bust or full length.

(b)

As many copies of finger impressions as are required in accordance with the department rules and as many copies of foot-print impressions as may be necessary in the opinion of the Police Officer taking them, may be taken.

7.

The dress to be worn by a person when being photographed shall be his ordinary everyday attire and not the jail dress, provided that a professional impersonator may also be photographed in such customs as he had adopted for the purpose of such impersonation or when the Police Officer under whose direction photograph is taken directs otherwise, in such other dress. Convicts shall not be allowed to change their appearance when photographs are taken.

Note. - For the purpose of this rule ordinary attire means the dress which the person whose photograph is being taken was accustomed to wear before his conviction or the dress which he was admitted into the jail.

8.

(a)

Photographs with negatives and finger and foot-print impressions taken under Section 3 shall be preserved in the Finger Print and Photo Bureau of the Criminal Investigation Department until destroyed in accordance with the departmental rules.

(b)

Spare copies of photographs may be supplied to any Superintendent of Police or his subordinates within whose jurisdiction the person committed or is likely to commit an offence.

(c)

Subject to the provisions of Section 7 of the Act photograph taken under Section 5 shall be preserved in the Criminal Investigation Department or in the office of the Superintendent of Police of the district in which photograph is taken, such photographs may be destroyed at any time by the Assistant to the Deputy Inspector-General of Police, C.I.D. or the Superintendent of Police, as the case may be.

9.

The Assistant to the Deputy Inspector-General of Police, C.I.D. may, in his discretion, order reproduction of photographs taken under these rules in the Criminal Intelligence Gazette. All photozinc blocks prepared in connection with such publication shall be retained in the Photo Bureau of the Criminal Investigation Department.

Related AI tags, queries and research notes

Translation